

MUTUAL NON-DISCLOSURE AGREEMENT

Illustrative Draft for Legal Portfolio Purposes

Effective Date: 24 September 2026

This Mutual Non-Disclosure Agreement ("**Agreement**") is entered into on **24 September 2026** ("**Effective Date**")

BETWEEN

MEDINOVA TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Bengaluru, Karnataka, India, hereinafter referred to as "**MediNova**" or the "**Disclosing Party**" where applicable;

AND

SECUREBRIDGE ANALYTICS PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Hyderabad, Telangana, India, hereinafter referred to as "**SecureBridge**" or the "**Receiving Party**" where applicable.

MediNova and SecureBridge are individually referred to as a "**Party**" and collectively as the "**Parties**".

1. PURPOSE

The Parties intend to explore a potential commercial and technology-development relationship concerning the design, development and possible integration of an **AI-enabled analytics module for hospital-management software**("Purpose").

In connection with the Purpose, either Party may disclose certain confidential, proprietary, technical, commercial or business information to the other Party.

The Parties therefore agree to protect such information in accordance with this Agreement.

2. DEFINITION OF CONFIDENTIAL INFORMATION

For the purposes of this Agreement, "**Confidential Information**" means any non-public information disclosed by or on behalf of a Party ("**Disclosing Party**") to the other Party ("**Receiving Party**"), whether disclosed orally, visually, electronically, digitally, in writing or in any other form, including:

2.1 Technical Information

- software architecture;
- source code and object code;
- APIs and API documentation;
- algorithms and models;
- technical specifications;
- system designs;
- product prototypes;
- databases and database structures;
- security architecture;
- technical documentation;
- development methodologies; and
- product roadmaps.

2.2 Commercial Information

- pricing and pricing strategies;
- business plans;
- financial information;
- commercial proposals;
- customer requirements;
- vendor information;
- sales strategies;
- marketing plans;
- forecasts; and
- details of existing or prospective business relationships.

2.3 Legal and Operational Information

Confidential Information may also include contracts, compliance materials, internal policies, risk assessments, regulatory strategies and other non-public operational information.

2.4 Information Derived from Confidential Information

Any notes, analyses, compilations, summaries, reports, models or other materials prepared by the Receiving Party that contain or are based substantially upon Confidential Information shall also be treated as Confidential Information.

3. CONFIDENTIALITY OBLIGATIONS

The Receiving Party shall:

- a. keep the Confidential Information strictly confidential;
- b. use the Confidential Information solely for the Purpose;
- c. not disclose Confidential Information to any third party except as expressly permitted under this Agreement;
- d. protect Confidential Information using at least the same degree of care that it uses to protect its own confidential information of similar importance, and in no event less than reasonable care;
- e. restrict access to Confidential Information to employees, officers, professional advisers, consultants and contractors who have a legitimate need to know such information for the Purpose; and
- f. ensure that persons receiving access to Confidential Information are subject to confidentiality obligations no less protective than those contained in this Agreement.

The Receiving Party shall remain responsible for any breach of this Agreement by persons to whom it provides access to the confidential Information.

4. PERMITTED USE

The Receiving Party shall use confidential information **only for evaluating, negotiating, developing and, where mutually agreed, implementing the proposed business relationship between the Parties.**

The Receiving Party shall not:

- use Confidential Information for its own independent commercial benefit;
 - use Confidential Information to develop a competing product;
 - reverse engineer software or technology disclosed by the Disclosing Party, except where expressly authorised in writing;
 - reproduce Confidential Information except to the extent reasonably necessary for the Purpose; or
 - use Confidential Information to solicit customers or business opportunities of the Disclosing Party outside the agreed Purpose.
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5. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

Confidential Information shall not include information that the Receiving Party can demonstrate:

- a. was publicly available at the time of disclosure;
- b. subsequently becomes publicly available through no breach of this Agreement;
- c. was lawfully known to the Receiving Party before disclosure by the Disclosing Party;
- d. is lawfully received from a third party without breach of any confidentiality obligation; or
- e. is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

The Receiving Party shall bear the burden of demonstrating that an exclusion applies.

6. LEGALLY COMPELLED DISCLOSURE

If the Receiving Party is required by law, regulation, court order or governmental authority to disclose Confidential Information, it may make such disclosure provided that, to the extent legally permitted, it:

- a. promptly notifies the Disclosing Party;
 - b. discloses only the portion of information legally required to be disclosed; and
 - c. reasonably cooperates with the Disclosing Party in seeking confidential treatment or other appropriate protective measures.
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7. DATA SECURITY

The Receiving Party shall implement reasonable technical and organisational safeguards to protect Confidential Information against:

- unauthorised access;
- unauthorised disclosure;
- accidental destruction;
- alteration;

- loss;
- copying; or
- misuse.

Where confidential Information is stored electronically, the Receiving Party shall maintain reasonable access controls and security measures appropriate to the nature and sensitivity of such information.

8. PERSONAL DATA

To the extent that confidential information contains personal data or other information protected under applicable data-protection laws, the Parties shall process such information only for lawful and agreed purposes and shall comply with applicable legal requirements.

The Parties shall not disclose or process personal data beyond the scope reasonably necessary for the Purpose.

Where required, the Parties shall execute a separate data-processing or data-sharing agreement.

9. INTELLECTUAL PROPERTY

Nothing in this Agreement shall be interpreted as:

- a. transferring ownership of any intellectual property;
- b. granting a licence to use intellectual property except as expressly necessary for the Purpose;
- c. assigning any patent, copyright, trademark, trade secret or other proprietary right; or
- d. creating an obligation to ent